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INFORMAL SETTLEMENT

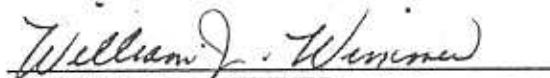
6. This Informal Settlement is voluntarily submitted by the Respondent to the Board for its consideration.


DONALD KAESER, Ph.D.

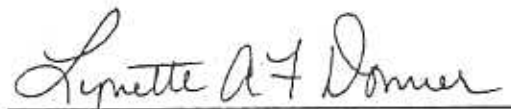
Signed and sworn to before me this 3rd day of January,
1992.


NOTARY PUBLIC IN AND FOR THE
STATE OF IOWA

Approved as to form:


WILLIAM J. WIMMER
Wasker, Sullivan & Ward
801 Grand Ave., Suite 3500
Des Moines, Iowa 50309-2719

ATTORNEY FOR RESPONDENT


LYNETTE A.F. DONNER
Assistant Attorney General
2nd Floor, Hoover Building
Des Moines, Iowa 50319

ATTORNEY FOR THE PUBLIC
INTEREST

7. This Informal Settlement is accepted by the Iowa Board of Psychology Examiners on this 24th day of January, 1992.


Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners



TERRY E. BRANSTAD, GOVERNOR

DEPARTMENT OF PUBLIC HEALTH
CHRISTOPHER G. ATCHISON, DIRECTOR

January 24, 1992

Donald M. Kaesser, Ph.D.
Central Iowa Psychological Services
Suite 707, West Towers
1200 35th Street
West Des Moines, Iowa 50265

RE: Letter of Reprimand

Dear Dr. Kaesser:

On August 5, 1991, the Iowa Board of Psychology Examiners filed a Statement of Charges against you, alleging that you violated certain provisions of the Iowa Code and Iowa Administrative Code. Specifically, it was alleged that you had removed patient information from Social and Psychological Service Associates (SPSA) regarding SPSA patients, and thus breached those patients' rights of confidentiality. It was further alleged that you solicited those patients to receive care at Central Iowa Psychological Services, and you caused some of those patients emotional distress.

Evidence obtained subsequent to August 5 suggests that you believed that you had a legal and ethical reason for a communication with those patients. Unfortunately, the letter that was sent left the impression with some patients receiving it that confidential information about them found its way to someone who should not have had it. Actions that have the potential to be harmful to the public, and actions that could violate patients' rights to confidentiality, are unethical. You are reminded that it is your responsibility, as a psychologist, to be alert to situations in which your influence as a psychologist might be even perceived to have been misused.

On January 24, 1992, you entered into an Informal Settlement with the Board as a disposition to the allegations. One of the terms of the Informal Settlement was that you receive a public letter of reprimand.

You are hereby admonished that violation of these ethical standards is a violation of the provisions of the Iowa Code and Iowa Administrative Code. Violations of this nature could result in disciplinary action being taken against you. Sanctions imposed by the Board could include revocation of license.

Dr. Donald Kaesser
January 24, 1992
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Please take notice of this reprimand and, in the future,
govern yourself accordingly.

Sincerely,

A handwritten signature in cursive script, appearing to read "Carl Davis".

Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF
THE LICENSE TO PRACTICE AS
A PSYCHOLOGIST OF:

DONALD KAESER,
Lic. No. 550,
Respondent.

DIA NO. 91DPHPS-3

NOTICE OF HEARING AND
STATEMENT OF CHARGES

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled at 3:00 p.m., October 18, 1991, in the First Floor Hearing Room of the Lucas State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 258A.3 and 258A.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on October, 26, 1987, and holds license number 550.

2. Respondent's license is current until June 30, 1992.

3. Respondent's current address as reported to the Board is West Towers, Suite 707, 1200 35th Street, West Des Moines, Iowa, 50265.

4. During 1990, Respondent was associated with Social and Psychological Service Associates (SPSA) of 1454 30th Street, West Winds Ste. 109, West Des Moines, Iowa 50265.

5. Respondent left SPSA on or about July 29, 1990, and became clinical director of Central Iowa Psychological Services (CIPS), 707 West Towers, 1200 35th Street, West Des Moines, Iowa 50265.

6. Upon his departure from SPSA, Respondent removed information from SPSA regarding SPSA patients and clients which Respondent had not treated.

7. Removal of this information breached those patients rights of confidentiality, as protected by Iowa Code Chapter 228 and Board rule 645 Iowa Admin. Code § 240.212(14)(e). Respondent's subsequent solicitation to receive treatment at CIPS of those patients who had not been under his previous care caused those patients emotional distress.

8. Iowa Code §§ 147.55(3) and 258A.10(3) provide the Board with jurisdiction to take disciplinary action against a licensee for "engaging in unethical conduct or practice harmful or

detrimental to the public. Proof of actual injury need not be established."

9. 645 Iowa Admin. Code § 240.212 provides further jurisdiction to the Board to take disciplinary action for enumerated reasons, including:

a. 645 Iowa Admin. Code § 240.212(1)(c). "[E]ngaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established."

b. 645 Iowa Admin. Code § 240.212(14). "Failure to comply with the . . . rules of ethical conduct and practice." Those rules provide in part:

(1) 645 Iowa Admin. Code § 240.212(14)(a)(5). "As practitioners, psychologists know that they bear a heavy social responsibility because their recommendations and professional actions may alter the lives of others. They are alert to personal, social, organizational, financial, or political situations or pressures that might lead to misuse of their influence."

(2) 645 Iowa Admin. Code § 240.212(14)(c)(3). "In providing psychological services, psychologists avoid any action that will violate or diminish the legal and civil rights of clients or of others who may be affected by their actions."

* * *

detrimental to the public. Proof of actual injury need not be established."

9. 645 Iowa Admin. Code § 240.212 provides further jurisdiction to the Board to take disciplinary action for enumerated reasons, including:

a. 645 Iowa Admin. Code § 240.212(1)(c). "[E]ngaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established."

b. 645 Iowa Admin. Code § 240.212(14). "Failure to comply with the . . . rules of ethical conduct and practice." Those rules provide in part:

(1) 645 Iowa Admin. Code § 240.212(14)(a)(5). "As practitioners, psychologists know that they bear a heavy social responsibility because their recommendations and professional actions may alter the lives of others. They are alert to personal, social, organizational, financial, or political situations or pressures that might lead to misuse of their influence."

(2) 645 Iowa Admin. Code § 240.212(14)(c)(3). "In providing psychological services, psychologists avoid any action that will violate or diminish the legal and civil rights of clients or of others who may be affected by their actions."

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 5th day of August, 1991.



Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners